

IN THE FAMILY DIVISION
SECOND JUDICIAL DISTRICT COURT

HON. MASTER ALISON TESTA

FILED
Electronically
JV24-00105
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Alicia L. Lerud
Clerk of the Court
Transaction # 10448475

REPORTER: CD/JAVS – Hearing Room C CLERK: M. Fiala
Case No. JV24-00104 JUVAB: EVAKAY BALDES Initial Filing Date: 1/23/2024
Case No. JV24-00105 JUVAB: ALEXIS CLARK Initial Filing Date: 1/23/2024
Hearing Date: 7/10/2024 Scheduled Start Time: 13:30:00
Case Type: JUV - ABUSE/NEGLECT
Event: WCHSA (WCDSS) SEMI-ANNUAL REV - ZOOM; AVD; DOR 1/23/24

Minor Party Information:

MINR EVAKAY BALDES - @1412997 ☒ Zoom

DOB: 10/19/2009 (14)

MINR ALEXIS CLARK - @1413001 ☒ Zoom

DOB: 2/24/2014 (10)

ICWA Status: NO

Tribal Affiliation: None

☒ DA – Katie Miller, Esq. for Beach - Zoom

Other Party Information:

PETR WASHOE COUNTY HUMAN SERVICES AGENCY - WCHSA

MOTH MEGAN MCCAFFERTY - @1299452 DOB: 8/25/1991 (32) ☒ Zoom

FATH DONOVAN CLARK - @1299453 DOB: 3/20/1985 (39) ☒ Zoom

FATH JUSTIN BALDES - @1413000 DOB: 10/3/1990 (33) ☒ Zoom

N/P DA Tyler E. Beach, Esq. - 10578

☒ APD Tirzah Mathews, Esq. – 11647 - Zoom

☒ PD Christine S. Sullivan, Esq. – 5073 - Zoom

☒ ATTY Jennifer Jeans, Esq. – 10481 - Zoom

☒ ATTY Neil E. M. Grad, Esq. – 672 - Zoom

Social Worker: Jennie Ballou and Kasey Pomerleau - Zoom Others Present: Della Baker – Grandmother/Placement- Zoom

[] PARTIES SWORN.

PETITION:

[] AMENDED: _____

_____: [] ADMIT [] SUBMIT [] DENY [] SEE MFR FILED HEREIN

_____: [] ADMIT [] SUBMIT [] DENY [] SEE MFR FILED HEREIN

[] OFFER OF PROOF MADE [] OFFER OF PROOF WAIVED

[] PETITION SUSTAINED UNDER NRS 432B WITH A FINDING OF:

[] ABUSE [] NEGLECT [] UNAVAILABILITY [] ABUSE/NEGLECT OTHER CHILD [] BASIC NEEDS [] OTHER _____

FINDINGS:

[] COURT HAS JURISDICTION IN THIS MATTER PURSUANT TO NRS432B AND NRS 125A.

[] BASED UPON SWORN TESTIMONY [] MOTHER [] FATHER [] _____ IS FOUND TO BE
INDIGENT AND COUNSEL IS APPOINTED.

[] REASONABLE EFFORTS MADE PER NRS432B.393

[] REASONABLE EFFORTS TOWARD REUNIFICATION NO LONGER REQUIRED

[] AS INCONSISTENT WITH PLAN [] RE: _____

[] CURRENT PLAN AND PLACEMENT IN _____ APPROVED

[] NOTICE OF HEARING PROPERLY SERVED

[] ICWA NOT APPLICABLE AND TO ADVISE IF THIS CHANGES

[] AMENDMENTS:

ORDERS:

[] WCHSA [] LEGAL CUSTODY [] PHYSICAL CUSTODY

[] MOTHER [] FATHER(S) [] OTHER: _____ [] COMPLY WITH CASE PLAN & SERVICE AGREEMENT

[] Subject to Court review [] Updated upon receipt of recommendations

[] REC. ADOPTED [X] REC. ADOPTED AS AMENDED ON THE RECORD

[X] AMENDMENTS: As stated by DDA Miller

The Clerk's minutes are not an order of the Court, and may be altered, amended or superseded by a written order. Parties/Counsel may obtain a copy of the JAVS recording of any proceeding through the Second Judicial District Court Resource Center located at 1 S. Sierra Street, Third Floor Reno, Nevada 89501. If the matter was reported via Court Reporter, a transcript must be requested directly from the Court Reporter.

Clerk: M. Fiala Print Date: 7/15/2024

Deputy: N/A – Hearing held by Zoom

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- ☐ PARENTS TO SUBMIT FINANCIAL STATEMENT/COST OF CARE ☐ WAIVED ☐ ORDERED – Previously set at zero.
☐ CASA APPOINTED ☐ CASA RELIEVED
☐ COUNSEL FOR _____ RELIEVED
☒ DISCRETION TO CLOSE BY LETTER REPORT AND ORDER
☐ CUSTODY ORDER TO BE OBTAINED
☐ WCHSA OFFER MAINTENANCE AND SPECIAL SERVICES TO MINOR CHILD(REN) AFTER AGE 18 PURSUANT TO NRS 432.030
☐ WCHSA MAY CONSENT TO NECESSARY AND/OR EMERGENCY MEDICAL/DENTAL TREATMENT FOR CHILD(REN).
☐ ☐ MOTHER ☐ FATHER(S) ☐ OTHER: SHALL PROVIDE WCHSA WITH IDENTIFYING INFORMATION,
INCLUDING NAME, ADDRESS AND PHONE NUMBER OF ANY RELATIVES
☐ ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN EFFECT
☐ VISITATION AS OUTLINED IN THE MFR FILED HEREIN
☐ PERMISSION TO RECRUIT:
☐ ADDITIONAL ORDERS:
☐ PLR GRANTED
☐ CASE DISMISSED
☐ GUARDIANSHIP GRANTED PURSUANT TO NRS 432B.466-468
☐ REUNIFIED ☐ OTHER:

PERMANENCY PLAN:

- ☐ REUNIFICATION
☐ APPLA
☐ TERMINATION OF PARENTAL RIGHTS/RELINQUISHMENT ☐ ADOPTION
☐ CONCURRENT PLANNING/REUNIFICATION ☐ _____
☐ GUARDIANSHIP
☐ OTHER _____
☐ ESTIMATED DATE OF COMPLETION _____
☐ COMPELLING REASONS NOT TO TPR APPROVED
☐ AS IN REPORT ☐ AS STATED ON THE RECORD
☐ REASONABLE EFFORTS TO FINALIZE PERMANENCY PLAN HAVE BEEN MADE
☐ AS IN REPORT ☐ AS STATED ON THE RECORD

NEXT HEARING:

- ☐ CONTINUED TO: _____ FOR: ☐ ADJ/DISPO ☐ OTHER: _____
☒ REVIEW HEARING: 1/8/25 at 3:00 pm FOR: ☐ SEMI ☒ PERM ☐ HRG CHG PLAN ☐ OTHER: _____
☐ MEDIATION: _____ ☐ SETTLEMENT CONFERENCE: _____
☐ EVIDENTIARY: _____
☐ ADDITIONAL INFORMATION: _____

DA – Requested positive updates regarding the children and then that they be excused.

PD – Support bifurcation.

APD – Support bifurcation.

Jeans – Did not speak about bifurcation when she spoke with the girls yesterday but would ask for a moment to explain.

Counsel Jeans explained to her client's what bifurcation.

Court – Will start off with positive updates regarding the children.

S/W – Regarding the girls, they are active this summer at Defy, the pool, thrift stores and doing crafts. They see their therapist weekly except Lexys's therapist is on vacation for a few weeks.

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Jeans – Counsel has spoken with her clients a lot about the case and they have been open and honest and acknowledge that things were no great at home at the time of the removal, but they do believe they have seen change on their parent's part and would like to return home on an in-home safety plan, starting with home visits and then some overnights. They report their parents are no longer discussing the case with them. Counsel explained that she will update them about the court case and do not need that information from their parents. They like there therapist and that is going very well. They are hoping to go home as soon as possible. Would ask that Evakay speak up if there is something of concern as she has a look of concern on her face.

The Court spoke informally with Evakay and Alexis.

Della Baker – Nothing to add, it would not make a difference.

Ms. Baker and the children were excused.

S/W Pomerleau – The therapists are not willing to use therapy time for calls between the parents and the children, the parents will not speak with the girls while Ms. Baker is present and they have the phone number blocked, there are two others who have offered to supervise phone calls, that might be a moot point shortly as they maybe proceeding with an in-home safety plan. Family therapy has not occurred since 6/27 due to the holiday and sessions are every other week. The couple's therapist is also the family therapist and the Agency believes there should be separate therapists in the best interest of the children. On 7/2/24 there was a clinical staffing because there are continued concerns that the mother is not being forthcoming or accurate with her therapist and is engaging in surface level therapy. While the Agency has no reports of fighting between the parents the Agency has no way to determine if this is accurate. It was also discussed that Mr. Clark continues to blame Ms. Baker for the girls being in care and has not acknowledged his part in the removal except for the drug use. After that clinical staffing, the social worker spoke with the girls who were very upset after coming back from a visit that day, reporting that their father had told the girls about the email with the clinical recommendations, the girls stated at that time they didn't want to return to their parents' home, the father then informed the girls they could not come home because they need ADHD testing and need to see there therapist longer, essentially blaming the children for being in care. The mother's therapist confronted her about the concerns and the impacts on the children and the mother yelled at her and stormed out of the session. The Agency has arranged for an overnight visit this Friday to see how things go, it will end on Saturday afternoon as Evakay has a sleep over at a friends home that is very important to her, and the parents were flexible in allowing this, the Agency will speak with the girls to see how the visit went and then may proceed with an in-home safety plan if the overnight goes well and no additional safety concerns are identified, it is the hope of the Agency that in-home can be implemented within the next month, the terms of of the safety plan will have safety providers go to the home once a day, unannounced and announced and the girls will be spoken with independently during each visit and the Agency expectation is access to every room in the home and to conduct safety checks thoroughly and the Agency has discussed what resources the children have if an issue comes up and they include their attorney, a next door neighbor as well as the Agency itself, Ms. Ballou, the girls expressed and understand they can call the police if their parents are fighting. The girls are expressing a desire to return home now. Ms. Ballou cleared the home on 7/9/24 during a home visit. The biggest concern is the mother's failure to understand how the information she provides to the children negatively impacts them, this has been evidenced continuously throughout the case, rather than the mother following the advice of her attorney, the Agency and the Court, to not speak ill of the placement and to not discuss the case she has continued to disregard this to the peril of the children and the Agency understands the added complication of the placement and does not discount that however the mother is responsible for her own actions, this was also a safety issue at the time of removal and it will be continuously be monitored as this has physically and emotionally impacted the children. The Agency is hopeful the mother is able to understand this and change her ways. Mr. Clark also plays a role in this, not demonstrated protectiveness of the children and has also spoken with the girls about the case and negatively about Ms. Baker. They are hopeful this will change once the girls are placed home. Mr. Baldes continues working and is stable and pays his child support. Mr. Baldes is willing to have Evakay in his home but does not wish to separate the sisters. Mr. Baldes wishes to have Evakay happy and in a safe living situation. Mr. Baldes was provided with an address to write to her and states he will write to Evakay.

Court – Are the parents being explained how damaging these conversations are to the children to help them understand just how damaging this is to the children. Are the parents receiving services to help them understand.

S/W -Pomerleau – They have an individual and couple's therapist and they have been referred to parenting classes. Ms. Ballou could step in to address this concern.

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S/W Ballou – They have requested Circle of Security or Strengthening Families program. Now that the children are established in their own therapies, they feel it is very important to have a separate Family therapist to really address these items but the current provider is conflicted by providing both therapies, so a separate therapist is needed. Family Therapy will be the best way to address this and another clinical staffing is set for August when they can bring them on the case, so they are aware of all the concerns. The parents completed a parenting class through Kid's First, but in speaking with the parents about what they learned they only complained about the content rather than discussing insight and they continue to feel they need additional hands-on training in this area.

S/W Pomerleau – The parents are very eager to have the girls home and different professionals have gathered different information from the girls about whether they wish to go home. At this moment the girls do wish to return home but a few weeks ago they did not feel that way so the Agency is struggling a little to balance all these things. They want to make sure the home is safe and the home is safe, the worker went there earlier this week and that is a positive step forward. The idea is to have an overnight and then Ms. Ballou and perhaps Ms. Jeans would speak with the girls and see how that goes.

DA – Counsel has the same questions. The in-home safety plan will include announced and unannounced visits in the home with the safety service provider having private conversations with the girls.

Court – Quiet frankly the children looked horrified today, not sure what Ms. Baker's part in all this, but she may be part of what is going on, hopefully the girls will have a safe zone soon. Parents are admonished that sharing all these adult matters does irreparable harm to the children, these little humans don't need all this animosity and tenseness and adult decisions placed on their shoulders, they need to have shining examples of calmness from their parents. The Court has had these conversations before and the Court is really concerned that this is ongoing. The biggest concern is the parents' adult conversations with the girls and how they negatively impact these young girls and the parents are admonished to stop. They are young children that do not need to be in the middle of this.

Jeans – Pretty much everything was covered. Counsel does not wish to add any more fuel to the fire, the situation of the placement is not healthy for the girls and the Agency has acknowledged that and that is part of the consideration for the in-home safety planning, that they are not in a great place right now. They are in the middle of the issues of the parents and grandparents, same as they were in the home with their parents, it is very upsetting that these adults cannot be adults. Otherwise, the girls are consistent with counsel, they do want to see change in their parents, but they are optimistic that the parents have made real change.

Court – If that change does not happen soon the children are not going to want to have a relationship with any of them, they need to rectify the relationships.

S/W Ballou – Questioned by the Court and represented that the placement is not yet licensed but is working through the licensing process.

S/W Pomerleau – Not sure if there is that specific kind of training class for licensing, not sure it would be readily effective in this case to be honest.

PD – Counsel will try and keep this possible; the placement issues have been at the forefront of the problems in this case, it was seen today when Ms. Baker tried to not be recognized as being present and was off camera, trying to not say she was present, to listen in. The Court understands that there is a very negative dynamic with this family. Her client, the mother, is trying hard to focus on her case plan and the girls and getting them home. They are hopeful the overnight visits go well and the in-home safety plan goes well. Her client, the mother, has made it clear she will be open and honest and has indicated the Agency will be allowed in any place in the home. Her client is open to taking any other parenting classes and has taken one. Her client's main concern is getting the girls' home, because the placement has caused many problems, the girls looked terrified today, afraid to speak and this is not healthy and not conducive to reunification. They all want reunification. Her client has shown grace and is working diligently to get the girls home. The parents have demonstrated a lot of safety abilities already. They have talked about a placement motion. An intensive in-home safety plan is the best thing for the girls now and her client is invested in this. Counsel has advised her client not to talk about Ms. Baker at all. Counsel believes she will take that warning and move on and focus on her time with the girls. The placement has been a detriment to this family in a very huge way and counsel knows the Agency is aware of it.

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Her client has done an excellent job, despite the things said about her by Ms. Baker, her client is moving forward, concentrating on herself and the girls and she wishes for peace and an in-home safety plan as soon as possible. Will defer to her client. Asking her client to focus on the positives in the case not the negative which suck so much energy.

Mother – She has not had any more inappropriate conversations, she has stopped doing that, they talk about craft, stuff with their rooms, making a cake, those are the conversations she focuses on. She wants her family whole and to have a safe environment for them.

Court – Asked the mother to think about positive things about Ms. Baker.

Mother – All the girls want to do is complain, she tries not to talk about Ms. Baker at all.

Court – If that is the best she can do, that is the best.

Grad – Counsel is also concerned with whatever is going on between the mother and her husband as well as with the caregiver. His client, Mr. Baldes, would like to start seeing his daughter by Zoom. With the Agency assistance, saying when it's appropriate and what would be appropriate to discuss, that would help him re-establish his contact with Eva.

Mr. Baldes – Nothing to add, his attorney covered it.

Court – Encouraged Mr. Baldes to speak with the Agency about those visits.

APD – Her concerns are the same on behalf of her client, Mr. Clark. These parents very much support each other and are working on their case plan daily, they hear about the updates and progress and what they have learned, at the very least they are updating weekly with emails reporting the progress. They know they had to make behavioral changes. This case at six months, her client engaged in extreme extensive services and he continues them, not only with the VA, outside Agencies and therapy to better himself. Has not seen this much work in this period of time from anyone else. Her client is extremely involved and engaged and has a passion to advocate for the children. Her client needs to continue engaging with his mental health and understanding how that impacts the children. Her client started the Strengthening Families program a bit ago and had a class today, except for Court. The Strengthening Families is a longer in-depth program. Her client has continued to remain positive and will continue to work his plan despite the challenges. The report indicates general progress, does not want that word to discourage, counsel is very encouraged about how hard he is working.

Court – General progress makes the Court happy, while there are still things to work on, it's not negative, the Court can see the strides Mr. Clark is making. Mr. Clark may have grown up in the same situation.

Mr. Clark – He grew up in it and in the military and his communication is not the best in the world. He is learning better ways to communicate and he has learned a lot, how to handle things without the aggressive way.

Court – Mr. Clark is learning and open to learning, a lot of progress is being made and the Court commends him on the efforts so far. One thing, leading the children to think they are to blame, in no circumstances should those statements be made. It's not about what help the children need, it's about what the parents need to do so that the children can return home. Any conversation around the children, or about the children, they need to understand this is not their fault.

Mr. Clark – He had a drug problem; this is his fault.

Court – Encouraged Mr. Clark to keep up his hard work.

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DA – Counsel did have an extensive conversation with the Agency about the case, despite covering for the assigned DA. This is a hard case. The Agency asks that the parents manage their own behaviors with anything to do about the care provider. The parents need to respond to the girls in a positive way if they talk about the caregiver. The girls need to not be placed in the middle. It will be very telling as the girls go back and forth in the next couple of weeks, how they respond, they have to respond positively to keep the girl's best interest in mind. Presented the requested changes to the proposed findings and recommendations including the request for discretion to close.

Court – Granted and encouraged the parents to have a set script of answers, set responses, to anything coming to the girls regarding Ms. Baker, asking that everyone rise above whatever Ms. Baker is doing, the responses need to be positive.